

in a mortgage or deed of trust; (2) the party attacking the sale . . . was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering.” (*Miles v. Deutsche Bank Nat'l Tr. Co.* (2015) 236 Cal. App. 4th 394, 408.)

Courts have applied equitable exceptions to the tender rule, such as: “(1) where the borrower's action attacks the validity of the underlying debt, tender is not required since it would constitute affirmation of the debt; (2) when the person who seeks to set aside the trustee's sale has a counter-claim or set-off against the beneficiary, the tender and the counter-claim offset each other and if the offset is greater than or equal to the amount due, tender is not required; (3) a tender may not be required if it would be ‘inequitable’ to impose such a condition on the party challenging the sale; ... (4) tender is not required where the trustor's attack is based not on principles of equity but on the basis that the trustee's deed is void on its face (such as where the original trustee had been substituted out before the sale occurred)[;] [(5)] when the loan was made in violation of substantive law, or in breach of the loan agreement or an agreement to modify the loan[;] [and (6)] when the borrower is not in default and there is no basis for the foreclosure” (*Turner v. Seterus, Inc.* (2018) 27 Cal.App.5th 516, 525-526; quoting 5 Miller & Starr, Cal. Real Estate (4th ed. 2017) § 13:256, pp. 13-1101 to 13-1102, fns. omitted.)

Here, Plaintiff alleges that the Subject Property was wrongfully foreclosed based upon the violations of the CA Homeowner’s Bill of Rights, particularly 2923.5. (FAC ¶¶ 71-79.) Thus, the Demurrer is overruled as to this cause of action.

Conclusion

For the reasons analyzed above, **the Demurrer is overruled as to the 29223.5 and the wrongful foreclosure claim and sustained as to the remaining claims with leave to amend.**

13. 9:00 AM CASE NUMBER: C25-00560
CASE NAME: ILHAM ALHAFNAWI VS. CR CONSTRUCTION
HEARING IN RE: MECHANIC'S LIEN
FILED BY:

TENTATIVE RULING:

Summary:

Plaintiff Ilham Alhafnawi’s Petition to Remove Mechanic’s Lien and for Slander of Title against Defendant CR Construction is **granted**.

Background

On February 27, 2025, Plaintiff Ilham Alhafnawi (“Plaintiff”) brought this Petition to (1) Remove Mechanic’s Lien and for (2) Slander of Title against Defendant CR Construction, Inc., a defunct company, (“Defendant”). Over the ensuing months, service of process was not accomplished in compliance with the code.

On September 24, 2025, the Court issued an order requiring Plaintiff to provide a declaration evidencing that the Petition and Accompanying Papers and Re-Notice of Hearing showing the hearing

date of January 14, 2026, were served on the Secretary of State pursuant to the Court's August 22, 2025 order. After reviewing the Declaration of Counsel Kelsey J. Ibarrola filed on December 17, 2025, the Court finds that Plaintiff Ilham Alhafnawi has complied with this Court's August 22, 2025 order requiring him to accomplish service on the Secretary of State with the re-notice of hearing of this Petition for January 14, 2026.

No timely opposition was received from Defendant. California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose Petition after service is a deemed to be Defendant's consent to the Petition.

Based on the foregoing, the Court finds that there is good cause to grant Plaintiff's Petition.

Ruling

Plaintiff Ilham Alhafnawi's Petition to Remove Mechanic's Lien and for Slander of Title against Defendant CR Construction is **granted**. This Court issues this order pursuant to California Civil Code § 8488 directing the release of the mechanic's lien recorded by Defendant CRC on December 7, 2023, as Instrument No. DOC-2023-0130006, in the official records of Contra Costa County.

14. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY
***HEARING ON MOTION IN RE: STRIKE PLTFs COMPLAINT**
FILED BY: PACIFIC GAS AND ELECTRIC COMPANY
TENTATIVE RULING:

Before the Court is Defendant Pacific Gas and Electric Company Motion to Strike. Defendant PG&E seeks to strike allegations in the Complaint relating to Plaintiffs' claims for punitive damages. Specifically, PG&E seeks to strike paragraphs 25, 30, 36, and 43 (from the Prayer).

Defendant's Motion is **granted** as outlined below.

Summary of Allegations

Plaintiff commenced working for PG&E as a Traffic Control Flagger on September 11, 2023. On June 15, 2024, he was struck by a vehicle while at work at a PG&E job site in Lafayette, California. He promptly reported his injury to his supervisor. His supervisor told him the injury would be a big problem since he was on probation. He also instructed Plaintiff to obtain a police report regarding the